

25SMUD02510 25SMUD02510

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-21

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Case Number: 25SMUD02510 Hearing Date: July 21, 2026 Dept: M

CASE NAME: 7254

Hollywood, LLC, v. Davis, et al.

CASE NO.: 25SMUD02510

MOTION: Motion

for New Trial

HEARING DATE: 7/21/2026

Legal

Standard

A motion for new trial is a creature of statute. (Neal v. Montgomery Elevator Co., (1992) 7 Cal. App. 4th 1194, 1198.) A movant must satisfy CCP sections 657 and 659. Under Code of Civil Procedure section 657, a motion for new trial may be granted if there is any:

[¶] 1. Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶] 2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise, which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the

party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. [¶] 7. Error in law, occurring at the trial and excepted to by the party making the application.

When ruling on an application

for a new trial, the court sits as an independent trier of fact. (Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) The court, therefore, has broad discretion to order new trials, limited only by the obligation to state its reasons for granting a new trial and the existence of substantial evidence in the record to support those reasons. (Ibid.) In assessing the need for a new trial, the court must rely on its view of the overall record, taking into account such factors, among others, as the nature and seriousness of the alleged misconduct, the general atmosphere, including the judge's control, of the trial, the likelihood of prejudicing the jury, and the efficacy of objection or admonition under all the circumstances. (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 211.)

The party intending to move for

a new trial must file with the clerk and serve upon each adverse party a notice of his intention to move for a new trial, designating the grounds upon which the motion will be made and whether the same will be made upon affidavits or the minutes of the court or both, either (1) "after a decision is rendered and before the entry of judgment"; (2) "within 15 days of the date of mailing notice of entry of judgment by the clerk of the court . . . , or service upon him or her by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest"; or (3) if another party files the first motion for new trial, "each other party shall have 15 days after the service of that notice upon him or her to file and serve a notice of intention to move for a new trial." (CCP § 659.) These time limits are jurisdictional and cannot be extended or waived by stipulation nor court order. (Marriage of Herr (2009) 174 Cal.App.4th 1463, 1469 [while trial judge characterized order as one "granting reconsideration," ruling effectively granted new trial and was untimely].)

Analysis

Defendant Elijah Von Davis moves

for a new trial, asserting (1) an irregularity in the proceedings of the court,

jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial (CCP § 657(1); and (2) newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial (CPP § 657(4)).

Request for Judicial Notice

Defendant's request for judicial notice is GRANTED as to the records maintained by the LA County Department of Health, specifically Exhibit A, pp. 7-15. (Evid. Code § 452(d).) The remainder of the request is DENIED, as the email correspondence between Defendant and the County (Ex. A pp. 1-6) and the transcript for a restraining order hearing (Ex. B) are not subject to judicial notice.

Irregularity

Defendant

argues that the Court improperly excluded the jury from considering his evidence binder, including certain certified public records, due to admittedly severe formatting omissions. (Davis Decl., ¶ 4.) Defendant argues the certified, dispositive public agency documentation would have established that Plaintiff relied on manufactured safety clearances lacking mandatory calibration and equipment logs, and lacked certain habitability characteristics in violation of Civil Code section 1942.4.

Defendant

cites no cognizable irregularity or abuse of discretion. Defendant does not present the specific evidence excluded, or explain how the Court abused its discretion by excluding such evidence. Defendant also did not object to the exclusion of said evidence at the time of trial. As the parties may recall, despite numerous pre-trial discussions, Defendant failed to comply with the standing trial order by individually identifying exhibits, marking them for identification, and providing copies for the court and opposing counsel. Prior to trial and even during trial, the Court gave Defendant multiple opportunities to put together his evidence into individually marked exhibits, including being dark from trial so that his exhibits could be assembled. Despite these extensions, Defendant never assembled individual exhibits in any form.

New Evidence

Defendant

contends that he has secured certified trial transcripts and direct public health monitoring data which demonstrate that the subject premises' utility clearances were systemically fabricated. Defendant does not explain why he could not have obtained this evidence with reasonable diligence. The cover letter of the County's response to Defendant's public records request is dated March 31, 2026, which should have given Defendant enough time to present those records at the trial on June 2-8, 2026. Additionally, the hearing transcript is not relevant or admissible in this action. Defendant presents this transcript to show that Plaintiff's management testified that the unit was clear of habitability violations, despite allegedly knowing that the property's utility infrastructure was non-calibrated and that his unit's stove and oven remain non-functional. (Davis Decl., ¶ 6.) However, this transcript does not establish any contradiction which might impeach Plaintiff's position that the unit was clear of habitability violations. Plaintiff consistently held the position that the unit was clear of habitability issues. In any event, any potentially relevant information discussed at that hearing concerning habitability violations could have been presented at trial during Davis's testimony, without reliance on this transcript.

Accordingly, the motion is DENIED.